

NCRWC & WORKING OF THE CONSTITUTION

One continuous constitutional-maintenance rail | Topic 52

Recommendation ≠ current law | Route must match defect | Basic structure permits reform

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Review, amendment or replacement?

REVIEW

Diagnose working; recommend; report alone changes no law.

ART. 368

Parliament amends; procedure and basic structure control.

STATE RATIFICATION

Specified federal changes need at least half the States.

REPLACEMENT

Fresh constituent claim; outside NCRWC mandate.

NCRWC = constitutional maintenance, not a new Constitution.

2

Identity and chronology

Government
resolution

22 FEB 2000

CHAIR

11 MEMBERS

11 MAR 2002

31 MAR 2002

Justice M.N.
Venkatachaliah

Chair included;
P.A. Sangma later
resigned

Report
adopted/signed

Presented to Prime
Minister

Executive + temporary + advisory; neither constitutional nor statutory.

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Mandate, method and authority

50 YEARS

→ Review constitutional working

OBJECT

→ Effective government + socio-economic development

BOUNDARY

→ Parliamentary democracy + basic structure

METHOD

→ Papers + experts + public responses

FORCE

→ Persuasive recommendations, not binding law

Consultation strengthens evidence; it does not confer constituent power.

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Institutional-identity firewall

Constituent Assembly

Founding authority

Parliament / Art. 368

Formal amendment

Sarkaria / Punchhi

Centre-State review

ARC

Administrative reform

Law Commission

Defined law reform

NCRWC

Whole-system working review

Overlap of subject does not merge mandates or recommendations.

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How a Constitution works

TEXT

→ Articles, Parts, Schedules

INSTITUTIONS

→ Legislature, executive, courts, federal units

PRACTICE

→ Rules, conventions, parties, political culture

CAPACITY

→ People, finance, data, procedure

OUTCOMES

→ Rights, accountability, trust, remedies

Test authorisation, restraint, delivery and correction.

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Electoral and legislative reform

ELECTORAL

Criminalisation; finance audit; party law; ECI appointment; anti-defection.

LEGISLATIVE

LS 120; RS 100; States 90/50; committees; privileges; public consultation.

STABILITY

Constructive no-confidence: 20% notice + alternative leader.

ANTI-DEFECTION

Resign/recontest; ECI decision; office bar; invalid destabilising vote.

Every item remains an NCRWC recommendation unless separately enacted.

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Executive, services and integrity

- 10% MINISTRY** → Proposed ceiling; later 91st Amendment uses 15%.
- CIVIL SERVICES** → Statutory boards for transfers, placements and promotions.
- SENIOR ENTRY** → Wider recruitment, including open market.
- TRANSPARENCY** → Information access; move from secrecy to openness.
- INTEGRITY** → Whistle-blowing, confiscation, Lokpal/Lokayuktas, CVC, audit.

Appointment, information, audit and sanction form one accountability chain.

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Judiciary, tribunals and rights

JUDICIAL COMMISSION

CJI + two senior-most SC judges + Law Minister + eminent person.

ACCOUNTABILITY

Complaints mechanism; court planning; access and speedy justice.

AGES

High Court 65; Supreme Court 68 — recommendations.

TRIBUNALS

Expertise + independence + High Court review.

RIGHTS

Torture, compensation, privacy, speedy justice, environment,
Article 300A

NCRWC commission ≠ later NJAC ≠ current collegium.

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Federalism and decentralisation

Art. 263

Inter-State Council consultation

Art. 307

Trade and Commerce Commission

Governor

Chief Minister consultation

Art. 356

Last resort + floor test + no premature dissolution

State Bills

Suggested Governor ~6 months; President ~3 months

Local bodies

Functions + fiscal domain + functionaries + audit/elections

Suggested Bill periods are not the current text of Articles 200-201.

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Implementation audit

- PROPOSAL** → State exact wording
- INSTRUMENT** → Find amendment, law, rule, judgment or order
- COMPARE** → Route + wording + institution + effect
- ATTRIBUTE** → Seek official evidence of adoption
- LABEL** → Exact | modified | related | judicial | displaced | pending

Chronology plus similarity is not proof of NCRWC causation.

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Working diagnosis and route choice

- RULES / CONVENTIONS** → Scrutiny, ordinance restraint, reasons
- ADMINISTRATION** → Vacancies, staffing, technology, civil service
- ORDINARY LAW** → Party finance, tribunals, transparency, integrity
- ARTICLE 368** → Only when constitutional allocation/text must change
- COURTS** → Interpret text; protect basic structure and judicial review

Use the least legally sufficient, institutionally workable route.

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Criticism, traps and qualified verdict

- LIMITS** → Self-limited mandate; consultation not constituent consent; uneven feasibility.
- LEGITIMACY** → Elected institutions and States decide contested redesign.
- TRAPS** → Not presidential replacement; not binding; not wholly unimplemented.
- CASES** → Use later judgments as governing evidence, not NCRWC implementation.
- VERDICT** → A selective diagnostic reform menu, assessed proposal by proposal.

Current-status control: 9 September 2026.